



ELECTRICITY OMBUDSMAN, UTTAR PRADESH

Representation No. 15 of 2026

M/s J. K. Industries, through its proprietor Mrs. Seema Jaiswal, situated at Belhari, Maharajganj, Akbarpur, District-Ambedkar Nagar, U.P.

..... Representationist

VERSUS

1. Managing Director, Madhyanchal Vidyut Vitran Nigam Ltd., 4-A, Gokhle Marg, Lucknow.
2. Executive Engineer, MVVNL, Vidyut Vitran Khand-Tanda, Ambedkar Nagar.

..... Respondents

Counsel of Representationist : Mr. Ajay Vikram Singh, Lucknow.
Counsel of Respondent No. 2 : Mr. Amarjeet Singh Rakhra, Lucknow.

ORDER

The instant Representation has been filed by M/s J. K. Industries, through its proprietor Mrs. Seema Jaiswal, situated at Belhari, Maharajganj, Akbarpur, District-Ambedkar Nagar, U.P., which has been registered as Representation No. 15 of 2026 dated 10.03.2026.

The Representation has been filed as the Writ-C No. 12243 of 2025 filed before the Hon'ble High Court of Judicature at Allahabad, Lucknow, has been disposed of by the Hon'ble High Court, on Representationist's wish to withdraw with liberty granted to him to approach this Court, vide Order dated 09.01.2026 as follows: -

1. *"Heard learned counsels appearing for the parties.*
2. *Upon reconsideration of the matter, learned counsel appearing on behalf of the petitioner wishes to withdraw the present writ petition with liberty to file a fresh application/representation before the Electricity Ombudsman.*
3. *In light of the above submissions made, the writ petition is **disposed of** with liberty granted to the petitioner to approach the Electricity Ombudsman in accordance with law."*



The representation was heard on 07.04.2026, 28.04.2026, 16.06.2026 and 07.07.2026. Learned counsel for Respondents and counsel for Representationist Mr. Ajay Vikram Singh participated in the proceedings. Heard both the parties in detail and reserved Order.

The Representationist, J.K. Industries, in its representation dated 23.02.2026 has submitted as below: -

“This complaint is being filed in terms of the Order dated January. 09, 2026 passed by the Hon'ble High Court, Lucknow Bench in Petition No. Writ-C No. 12243 of 2025 (J.K. Industries Ltd Vs. State of U.P. & Others). This is the first complaint on this subject matter and no other case on this issue is pending any other Court or Tribunal. The complainant J.K. Industries is a registered firm under the GST Act having an Industrial Connection with Account I.D. No. 731813859992 and a sanctioned load of 80 HP under (MV-6 Category). The supply to the complainant was given from the 11 KV Ariya feeder originating from 33/11 KV Surapur substation originating from the 220/132 KV New Tanda Kurki Bazar, Ambedkar Nagar Substation. From 19.05.2018 the complainant started the manufacture of door and windows hinges, and before that in the year 2017 in the Global Investor Summit the complainant herein signed a memorandum of understanding approving a project of 1.95 crores for it. The complainant's unit had engaged 80 women and 40 male workers and their livelihood totally depended upon this unit. Till 20.11.2020, the production in the complainant's unit ran smoothly as about six hours of electricity was regularly supplied to it. But thereafter the quantum of electricity supplied to the complainant's unit was drastically reduced from the earlier six hours of daily electricity supply to only two hours of electricity. This resulted in reduced production leading to losses. For about eight months the complainant personally met the officers of the opposite parties and also contacted them on telephone to stream line the power supply, however nothing happened. Thereafter the complainant on 10.08.2021 submitted a representation to the District Magistrate, Ambedkar Nagar and also to the Deputy Commissioner Industries/ Coordinator, Entrepreneurship Promotion Industries Development Centre, Ambedkar Nagar requesting therein to stream line the electricity supply in its premises. On 29.12.2021 a meeting of Zila Udhyog Bandhu was held in which the issue regarding the supply of electricity to J.K. Industries was raised by the representative of the complainant herein, on which the President Udhyog Bandhu directed the complainant to apply for electricity connection from the Akbarpur VIP feeder. As per the directions issued by the President Udhyog Bandhu the complainant herein applied for the electricity connection from the Akbarpur VIP feeder through Letter dated



04.01.2022. The copy of this letter was also forwarded to the District Magistrate Ambedkar Nagar, CDO Ambedkar Nagar and Deputy Commissioner Industries Ambedkar Nagar. In the letter it was stated that the applicant was ready to comply with all the formalities required for availing the electricity connection. On the direction issued in the meeting of Zila Udhog Bandhu held on 29.12.2021 and the subsequent directions issued by the District Magistrate Ambekar Nagar, the Executive Engineer, EDD-Tanda wrote Letter dated 30.12.2021 to the Superintending Engineer, Vidhut Vitran Mandal-Akbarpur, Ambekar Nagar for ensuring supply to the complainant's industry from 09 A.M. to 5 P.M. The Superintending Engineer vide his Letter dated 31.12.2021 address to the Director Technical MVVNL, Lucknow informed him with regard to the electricity supply to J.K. Industires and for issuing directions for supplying electricity as per the directions issued by the District Magistrate Ambedkar Nagar to the complainant. Again on 07.01.2022 the Superintending Engineer, MVVNL Akbarpur, Ambedkar Nagar wrote another letter to Director Technical MVVNL with regard to supplying electricity to J.K. Industries from 07 A.M. to 10 P.M. In spite of the fact that the complainant industry was receiving electricity only for two hours a day, the owner continued to operate the industry as she was hopeful that the supply of electricity will improve as the higher authorities had given sufficient assurance. This was also the period of Covid-19 pandemic and in spite of the fact that owner was infected by the virus she did not close the factory just in order to give some employment to the 80 women and 40 men workers of the factory. However, the electricity supply did not improve and finally the complainant's unit was closed after somehow finishing and supplying the last Order on 08.08.2022 to Nepal. Thus, for more than eighteen months the complainant was forced to somehow operate her unit at two hours electricity supply daily. This resulted in huge losses to the complainant as raw materials had already been purchased on the basis of orders received. However, because of low production timing the contract could not be fulfilled. It resulted in a loss of 7.5 crore rupees to the complainant. From the above stated facts, it is clear that the respondents were solely responsible for the losses that occurred to the complainant. On 03.10.2023 the complainant wrote a letter to the District Magistrate Ambedkar Nagar, detailing the conduct of the opposite parties herein and informed about the financial loss that had occurred to the complainant. A request was also made in the letter to improve the electricity supply so that the industry can be re-operated. Taking cognizance of the Letter dated 03.10.2023 addressed to the District Magistrate Ambedkar Nagar, the Deputy Commissioner Zila Udhog Promotion and Entrepreneurship Development Centre Ambedkarnagar, wrote two letters dated 11-10-2023 and 29-11-2023 addressed to the Superintending Engineer, Akbarpur



and Executive Engineer Tanda, Akbarpur for restarting proper electricity supply to J.K. Industries. The letter also informed about the loss that had occurred to the complainant because of low supply of electricity. On 18.11.2023 the complainant herein submitted another letter on this issue to the District Magistrate Ambedkar Nagar in the Janta Darshan Programme of the District Magistrate. On this letter, the then Executive Engineer Tanda, Mohit Kumar submitted a wrong report that the electricity connection of J.K. Industry has been disconnected on 09.06.2022 because of non-payment of dues and P.D. has been done on 24.04.2023. It is submitted that the report of the Executive Engineer is wrong as the unit continued the operation till 08.08.2022 in spite of the fact that it was receiving only two hours of electricity supply in a day, but the complainant in a hope that the situation of the supply will improve continued operating the factory. The complainant is an ISO certified industry and its products were ISI mark certified. The industry had its Trade Mark registered and had an import-export license issued from the Government of India. It had gainfully employed 120 workers all from its village where it was located. It was doing a good business even with a mere six hours electricity supply. However, this electricity supply was for no reasons drastically reduced to two hours daily. Even then the complainant continued to somehow operate the unit in a hope that the situation will improve soon. The complainant ran from pillar to post petitioning every concerned authority from the electricity department and also the concerned administrative officers. She also sent letters to the Chief Minister's office and the PMO. All the necessary assurances were given to her. Even necessary correspondence in this regard was made from the office of Respondents in Akbarpur to the head office of MVVNL in Lucknow, However the ground situation never improved. As a result, the complainant had to incur losses worth 7.5 Crore rupees. The unit had to be closed and all the workers became jobless. The first representation in this regard was given on 10.08.2021 and till 25.10.2025 the complainant made several representations to the concerned authorities of the respondent, however the condition of electricity supply did not improve resulting in closure of the unit. Finally, on 09.12.2025 the complainant filed a Writ Petition before the High Court, Lucknow Bench with a prayer to direct the respondent MVVNL Lucknow to pay Rs. 7.5 crores as compensation to the petitioner. The Hon'ble High Court vide its Order dated 09.01.2026 disposed off the petition with liberty to approach the Electricity Ombudsman Lucknow in this regard. Hence the complainant is filing this complaint before the Hon'ble Ombudsman with the following.



- A- Issue an order directing the respondents to compensate the complainant by paying him Rs. Seven Crores fifty lakhs as losses which has occurred to it because of the poor electricity supply to its unit.
- B- Issue an order directing the respondents to restore the electricity supply of the complainant's unit and also ensure that regular supply from 09 A.M. to 05 P.M. of electricity per day is given to the unit.
- C- Pass any other order in favour of the complainant which in the circumstances of the case the Hon'ble Ombudsman deems fit and proper.”

The Respondent No. 2 Executive Engineer, MVVNL, Vidyut Vitran Khand-Tanda, Ambedkar Nagar, in its Reply dated 25.04.2026 filed has submitted as below: -

“The contents of paragraph No. 1 of the Representation relate to the Order passed by the Hon'ble High Court in Writ-C No. 12243 of 2025 and being a matter of record the same calls for no specific reply. However, it may be pertinent to point out that from a bare perusal of the order it becomes clear that the petition was disposed of by the Hon'ble High Court in terms of the undertaking given by the Counsel for the petitioner, to the effect that he wishes to withdraw the Writ Petition with liberty to file a Representation before the Electricity Ombudsman. Thus, it would be incorrect to suggest that the Representation under reply is being filed under the direction of the Hon'ble High Court or that the same becomes maintainable as it is being filed pursuant to the direction given by the Hon'ble High Court. As a matter of fact, the Representation under reply is not maintainable before the Electricity Ombudsman as the Electricity Ombudsman has no original jurisdiction to entertain disputes relating to the consumers of energy. Furthermore, the disputes of the present nature are not maintainable before the Electricity Ombudsman. The contents of Paragraph No. 2 of the Representation are a matter of record and call for no specific reply. However, it would be pertinent to point out that the Electricity Ombudsman exercises Appellate/Supervisory Jurisdiction over the decision and proceedings before the CGRF and the Electricity Ombudsman does not have any original jurisdiction. The contents of Paragraph No. 3 of the Representation are factual in nature and call for no specific reply. The contents of Paragraph No. 4 & 5 of the Representation are not germane to the controversy involved in the present case and therefore call for no specific reply. The contents of Paragraph No. 6, 7, 8, 9, 10, 11 & 12 of the Representation under reply are false and are denied in the manner stated. It is wrong to suggest that the Department was at any fault which led to losses at the end of the petitioner. The number of hours of supply to any



consumer, depends upon several considerations/factors, including but not limited to the nature of the Feeder, the location of the industry, nature of Industry, the availability of supply of energy with the Department and the terms and conditions of the Agreement for supply. Every Agreement executed by the Department with the consumer contains a specific stipulation that the department will not be responsible to the consumer, in any manner whatsoever, for reduced or irregular supply for reasons beyond its control. The department has never undertaken to indemnify the consumer for any losses that the consumer may suffer due to the nature or manner of supply of energy. The petitioner may be required to file the terms and conditions of supply of energy / the Agreement, which the consumer would have executed with the Department at the time of availing the supply. If the industry of the consumer was heavily reliant upon continuous supply of energy or regular supply during specific hours, the consumer could have opted for the facility of Protective Load. The consumer was being supplied through a Rural Feeder and the supply was in terms of the roaster determined by the UPSLDC. It is not as if the consumer / petitioner was being victimized or targeted in any unwarranted manner by the Department. The contents of Paragraph No. 13 of the Representation are false and are vehemently denied. The petitioner should have had reasonable foresight to gauge risk associated with his business. A perusal of Annexure No. 7, 8 and 9 of the Representation makes it clear that there was almost 18 hours of supply per day which was available to the consumer albeit not as per the choice of preferred hours. The frivolity of the claim of the petitioner is further apparent from the perusal of Annexure No. 11, where the purported losses upto the last declared date of business viz. 08.08.2022, was projected at Rs. 5 Crore. The so-called chart showing business losses of the petitioner is a fictitious document, created in petitioner's self-interest. The contents of para 14, 15 & 16 of the Representation are false and are denied in the manner stated. It is noteworthy that as per the petitioner's own claim, his industry got shut down and stopped production on 08.08.2022, due to sparse availability of power. Therefore, it is hypothetical for the petitioner to make a request to restart the supply to the industry on 03.10.2023, without there being any improvement in the condition of supply. The consumer has suppressed the fact that its connection was temporarily disconnected on 09.06.2022 on outstanding dues and since, the petitioner failed to clear its outstanding dues, as such his connection was permanently disconnected on 24.04.2023 and that his current outstanding dues are to the tune of Rs. 2,14,119/-. Therefore, it is clear that the present petition is surrogate in nature. The petitioner with a view to keep the recovery of the Department (towards its outstanding dues) at bay, has filed the present petition, falsely asserting that it deserves to be



compensated at the end of the Department, for irregular/deficit supply. The contents of Paragraph No. 17 and 18 of the Representation under reply, are false and are vehemently denied in the manner stated. They have already been responded to in the preceding paragraphs. The contents of Paragraph No. 19, 20 and 21 of the Representation under reply, are a matter of record and therefore call for no reply. At the cost of repetition, it is stated that the liberty to approach the Electricity Ombudsman was given by the Hon'ble High Court on the own asking of the petitioner and since, the representation is even prima facie not maintainable before the Electricity Ombudsman, as such it cannot be contended that in terms of the Order of the Hon'ble High Court, the Electricity Ombudsman will have a jurisdiction to decide a matter, which it originally lacked. The Representation under reply apart from having no merits, is not maintainable before the Electricity Ombudsman. If the petitioner is so advised, it can file a suit for damages or initiate a complaint in terms of UPERC (Standards of Performance) Regulations, 2019.”

The Representationist, in its Rejoinder dated 11.06.2026 filed has submitted that Clause 8.4.4 of the UPERC (Standard of Performance) Regulations, 2019 empowers the Electricity Ombudsman to entertain complaints relating to compensation. The Representationist has further reiterated the submissions made under the representation.

The Respondent No. 2 Executive Engineer, MVVNL, Vidyut Vitran Khand-Tanda, Ambedkar Nagar, in its Written Submissions dated 08.07.2026 filed has submitted as below: -

“The present Representation is not maintainable before the Hon'ble Electricity Ombudsman, as the Electricity Ombudsman has no original jurisdiction to entertain disputes relating to the consumers of energy. Furthermore, the disputes of the present nature are fundamentally not maintainable before the Electricity Ombudsman. The Electricity Ombudsman exercises strictly Appellate / Supervisory Jurisdiction over the decisions and proceedings before the Consumer Grievance Redressal Forum (CGRF) and the Electricity Ombudsman does not have any original jurisdiction to entertain the present complaint. The petitioner's reliance on the order passed by the Hon'ble High Court in Writ-C No. 12243 of 2025 to establish maintainability is entirely misconceived. From a bare perusal of the said order, it becomes clear that the petition was disposed of by the Hon'ble High Court in terms of the undertaking given by the Counsel for the petitioner, to the effect that he wishes to withdraw the Writ Petition with liberty to file a Representation before the Electricity Ombudsman. It would be incorrect to suggest that the Representation is being filed under the direction of the



Hon'ble High Court or that the same becomes maintainable as it is being filed pursuant to the direction given by the Hon'ble High Court. The liberty to approach the Electricity Ombudsman was given by the Hon'ble High Court entirely on the own asking of the petitioner. Since the representation is even prima facie not maintainable before the Electricity Ombudsman, as such it cannot be contended that in terms of the order of the Hon'ble High Court, the Electricity Ombudsman will have a jurisdiction to decide a matter, which it originally lacked. The Representation, apart from having no merits, is absolutely not maintainable before the Electricity Ombudsman. If the petitioner is so advised, it can file a suit for damages or initiate a complaint in terms of UPERC (Standards of Performance) Regulations, 2019. In the view of the above, the Petitioner may be relegated to pursue the appropriate forum under the Uttar Pradesh Electricity Regulatory Commission (Standards of Performance) Regulations, 2019 and adhere to the scheme of the hierarchy of courts/authorities under the said rules."

Heard both the parties and perused the submissions made in the present representation. There was an issue regarding the supply of electricity to the Representationist's unit. Until 20.11.2020, the production in the Representationist's unit was running smoothly, as approximately six hours of electricity was regularly supplied each day. However, thereafter, as per the Representationist, the quantum of electricity supplied to the unit was drastically reduced from six hours per day to two hours. It has also been submitted that the connection was supplied from a rural feeder, and not from separate or industrial feeder. Due to this irregular supply, the industry incurred losses and was finally shutdown. On an outstanding dues to the tune of Rs. 2,14,119/-, the permanent disconnection on 24.04.2023 was done by the licensee.

The Representation has been filed by the Representationist subsequent to withdrawal of its Writ Petition from Hon'ble High Court, disposed of vide Order dated 09.01.2026 with liberty granted to him to approach this Court. In the Representation, the Representationist has prayed to compensate the complainant by paying him Rs. Seven Crores fifty lakhs by the Licensee as losses which has occurred to it because of the poor electricity supply to its unit and also prayed to restore the electricity supply of the unit and to ensure regular supply of electricity from 09 A.M. to 05 P.M. per day for the unit. The Representationist has submitted that Clause 8.4.4 of the UPERC (Standard of Performance) Regulations, 2019 empowers the Electricity Ombudsman to entertain complaints relating to compensation.

The Representation has been opposed by the Licensee on maintainability stating that the petition was disposed of by the Hon'ble High Court in terms of the undertaking given by



the Counsel for the petitioner, to the effect that he wishes to withdraw the Writ Petition with liberty to file a Representation before the Electricity Ombudsman. Thus, it would be incorrect to suggest that the Representation under reply is being filed under the direction of the Hon'ble High Court or that the same becomes maintainable as it is being filed pursuant to the direction given by the Hon'ble High Court. As a matter of fact, the Representation under reply is not maintainable before the Electricity Ombudsman as the Electricity Ombudsman has no original jurisdiction to entertain disputes relating to the consumers of energy. It has been further added that the Electricity Ombudsman exercises Appellate/Supervisory Jurisdiction over the decision and proceedings before the CGRF and the Electricity Ombudsman does not have any original jurisdiction.

The bare perusal of the order passed by the Hon'ble High Court makes it evident that the writ petition was disposed of in terms of the undertaking given by the learned counsel for the Representationist, whereby liberty was sought to withdraw the writ petition and to file a representation before the Electricity Ombudsman. Accordingly, it would be incorrect to contend that the present representation has been filed pursuant to any direction issued by the Hon'ble High Court or that it becomes maintainable merely on account of such order. Therefore, the representation is liable to be dismissed as not maintainable.

The Representationist has submitted that Clause 8.4.4 of the UPERC (Standard of Performance) Regulations, 2019 empowers the Electricity Ombudsman to entertain complaints relating to compensation. The Clause 8.4.4 of the UPERC (Standard of Performance) Regulations, 2019 is reproduced as below: -

"In case the CGRF does not decide the amount of Compensation within the specified time as per the CGRF and Ombudsman Regulations or the aggrieved consumer is not satisfied with the decision of the CGRF, the consumer may approach Electricity Ombudsman who shall deal and decide according to the CGRF and Ombudsman Regulations. The decision of Electricity Ombudsman shall be final. In case of non-compliance of any order of CGRF or Ombudsman by Discom the Consumer may approach Commission U/s 142 of the Act."

The above provision clearly states that the consumer may approach Electricity Ombudsman in case the CGRF does not decide the amount of compensation within the specified time or the aggrieved consumer is not satisfied with the decision of the CGRF. In this case, the Representationist has not exercised the remedy available at CGRF level which has the original jurisdiction. It is further to clarify that the UPERC (Standard of Performance)



Regulations, 2019 has been made under Section 181 (1) and 181 (2) (za & zb) of the Electricity Act, 2003 specially to provide compensation to consumer in case of deficiency in Standards of Performance by the Licensee. The regulation provides detailed compensation mechanism and process of claiming compensation under Clause 8.

Upon consideration of the above relevant provisions and the preliminary objections raised by the Opposite Party, it is evident that the present dispute cannot be entertained directly by this Court / Electricity Ombudsman. The Representationist is required, in the first instance, to follow the process of claiming compensation using compensation mechanism as per the provisions of Clause 8 of the UPERC (Standard of Performance) Regulations, 2019. Following above, in case the CGRF does not decide the amount of compensation within the specified time or the consumer is aggrieved with the decision of the CGRF, the Representationist would be at liberty to prefer a representation before this Court / Electricity Ombudsman, as provided under the applicable regulations.

In view of above, since the Representationist has not exhausted the process of claiming compensation under statutory remedy available through UPERC (Standard of Performance) Regulations, 2019, the present representation is not maintainable at this stage.

Accordingly, the representation is hereby **disposed of** with liberty to file afresh after availing the appropriate remedy in accordance with law.

Dated: 9-7-26


Sanjay Srivastava
Electricity Ombudsman, U.P.